

JUSTIFICATION
FOR AN EXCEPTION TO FAIR OPPORTUNITY

1. Contracting Activity: Department of Veterans Affairs (VA)
Office of Procurement, Acquisition, and Logistics
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724
2. Description of Action: The proposed action is for a firm-fixed-price delivery/task order to be issued under the National Aeronautics and Space Administration (NASA) Solutions for Enterprise Wide Procurement (SEWP) V Governmentwide Acquisition Contract (GWAC) for a brand name NetApp Storage Area Network (SAN) storage array including the associated cabling, components, software, installation services, with maintenance and support.
3. Description of Supplies or Services: The Department of Veterans Affairs (VA), Office of Information Technology (OIT) has a requirement for the VA Informatics and Computing Infrastructure (VINCI) for one (1) brand name NetApp C30 Storage Area Network (SAN) two-node storage array equipped with 16 2X15.3 terabytes (TB) solid state drives Non-Volatile Memory express (NVMe) Drive Packs including the associated cabling, components, software, and installation services, with maintenance and support. OIT requires the brand name NetApp SAN two-node storage array to expand and strengthen the VINCI Statistical Analysis Software (SAS) Grid storage infrastructure at the Austin Information Technology Center (AITC). The VINCI SAS Grid storage infrastructure provides storage technologies to securely host suites of medical and clinical research databases integrated from select national data sources. The VINCI SAS Grid is an integral component of both the VINCI research and operations environments, supporting thousands of projects and utilizing over 100 TB of data daily. This procurement will expand the storage capacity for the SAS Grid to 800 TB, assuming a 2.5:1 compression ratio, which is expected to keep the SAS Grid solvent for up to five years. The equipment for the NetApp C30 SAN two-node storage array includes the All Flash Flash Storage C30 unit, 16 2X15.3 TB solid state drives NVMe Drive Packs, 4 power supplies, and 4 cluster switches, along with the associated cabling, racks, and other components necessary to connect to the VA SAN infrastructure, fit the existing VINCI SAS Grid storage environment, and have 100% compatibility with the existing VINCI SAS Grid storage infrastructure. The software required for the solution includes NetApp data at rest encryption capable operating system, NetApp ONTAP One, and SnapMirror Cloud, all of which shall interface with the existing VINCI SAS Grid storage infrastructure, such as the security access controls automations, and maintain the functionality of existing scripts. The vendor shall install and configure all hardware and software for the SAN to ensure the hardware and software connect to the VA SAN infrastructure and VINCI SAS Grid storage, and function as intended. The required maintenance and technical support packages include NetApp four-hour parts replacement, NetApp non-returnable drives, NetApp SupportEdge Advisor, NetApp SupportEdge Protect for Government, NetApp Advisor

Plus for System, and NetApp hardware support 24 hours a day X 7 days a week X 4-hour on-site response time to ensure the hardware and software function as intended. The Delivery of hardware is 30 days after receipt of the delivery order; software and hardware support performance will be a 12-month base period with 4 12-month option periods. [REDACTED]

4. Statutory Authority: Pursuant to Federal Acquisition Regulation (FAR) Subpart 16.507-7(b) the following brand name requirement is being justified and approved as an exception to fair opportunity under the statutory authority of Section 41 U.S.C. 4106(c)(2) as implemented by FAR Subpart 16.507-6(b)(2) entitled "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized".
5. Rationale Supporting Use of Authority Cited Above: Based on market research, as described in section 8 of this document, it was determined that limited competition is available among authorized resellers for the required brand name NetApp SAN two-node storage array. The existing VINCI SAS Grid storage environment is designed entirely around NetApp storage devices. The NetApp SAN two-node storage arrays are hardware with embedded software that runs the hardware. The embedded software includes source code that is proprietary to NetApp. No other brand of SAN two-node storage array is compatible with the current VINCI SAS Grid storage infrastructure. Specifically, the proprietary constraints within the source code of the software preclude the use of any other brand name hardware, software, and maintenance and support solution, as any such other solution would not be able to communicate with the existing VINCI SAS Grid storage infrastructure to provide the necessary scripts and commands or apply required updates, patches, and bug fixes. Despite efforts to compress, archive, and delete data as much as possible, the SAS Grid storage has exceeded 90% of its storage capacity, and it is projected to exceed its total storage capacity by the end of 2026. If this occurs, the SAS Grid will begin archiving massive amounts of data that are currently in use for research and operations projects, thereby jeopardizing the ability of those projects to proceed. More specifically, as the projects' results are archived to free space for new queries, the ability for the researchers to compare older data and current results will be significantly delayed. Such delays will burden the support staff with constantly needing to manually retrieve older archived data. In addition, it is projected that by the end of fiscal year 2026 there will not be enough storage space to allow new queries to run. For VA to move to a solution other than NetApp, VA would need to update the current security access controls and automations to a new security process to ensure compatibility of a new SAS Grid storage infrastructure solution. In addition, VINCI SAS Grid storage infrastructure functionality uses scripts specific to VINCI to update and modify Access Control Lists on the NetApp Operating System, and other solutions have constraints, such as Group number limits, that do not allow VA to replicate the required functionalities. The Government estimates it would take at least six months to acquire, install, and interface a different brand of storage solution. In addition, VA would have to retrain staff on administration and maintenance of the new product, which is estimated to take an additional six months' time as well as add costs for staff time and training and the potential risk of interruption of services during time of

transition. To successfully implement a different brand SAN two-node storage array is estimated to cost \$4,000,000 as well as delay implementation for 12 months. Therefore, NetApp is the only provider that can provide SAN two-node storage arrays that are able to fully meet the Government's functional requirements.

6. Efforts to Obtain Competition: Market research was conducted, details of which are in section 8 of this justification. This effort did not yield any additional sources that could meet the Government's requirements. It was determined that limited competition is viable among resellers for these brand name items. In accordance with FAR Overhaul VA Deviation 16.507-7(c)(1), this justification will be provided with the solicitation to all Service-Disabled Veteran-Owned Small Business NASA SEWP V GWAC holders. Furthermore, in accordance with FAR Overhaul VA Deviation 5.301(a), the award notice for this action will be synopsized on the Contract Opportunities website.
7. Actions to Increase Competition: The Government will continue to conduct market research to learn if there are changes in the marketplace that would enable future actions to be competed.
8. Market Research: The Government's technical experts conducted market research in November and December 2025 to ascertain the ability of other, similar SAN two-node storage array including the associated cabling, components, software, installation services, with maintenance and support that can meet VA's needs. Additional market research was conducted for several brands, including Pure Storage, Dell EMC, and Hewlett Packard Enterprise, through internet sites, Gartner product technical reviews, application demonstrations, and meetings with potential vendors. VA technical experts analyzed these competitors' capabilities and determined while they offer similar SAN two-node storage arrays, they cannot meet the Government's fit and functional requirements without the substantial duplication of costs and time referenced in Section 5 of this document. Specifically, the technical experts confirmed that no other vendor's source code is able to interoperate with the existing VINCI SAN Storage Grid infrastructure. In multiple tests with products other than NetApp, VA was unable to replicate the required functionality of the VINCI SAS Storage Grid scripts due to constraints such as Group number limits. While other SAN storage array manufacturers exist, no other manufacturer is able to access the NetApp source code to operate, maintain, and support the existing VINCI SAS Grid infrastructure already installed and operating at the AITC, or access the existing data. The existing NetApp SAN storage arrays are proprietary to NetApp, and due to the included proprietary NetApp code, no other brand of SAN storage array is compatible with the current VINCI SAS Grid storage infrastructure. Only a NetApp SAN storage array can interoperate within VINCI's existing SAS Grid storage environment. Furthermore, the market research results indicate that only NetApp and resellers of NetApp products can provide annual maintenance and support for hardware and software on the NetApp SAN storage array as no other manufacturer has the required access to NetApp proprietary data and source code. Based upon the above market research, the Government's technical experts have determined that only NetApp storage array including the associated

cabling, components, software, installation services, with maintenance and support can meet all of VA's requirements.

Additionally, the Contract Specialist (CS) conducted market research in January 2026, using the NASA SEWP V GWAC market research and provider lookup tools to determine what vendors are capable of providing the full requirement. Based on this market research, the CS identified several Service-Disabled Veteran-Owned Small Businesses that are NetApp authorized resellers able to provide the required brand name products to meet the Government's needs for this effort.

9. Other Facts: None.

10. Technical and Requirements Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

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VINCI Director

11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price to the Government for this action will be fair and reasonable because NASA SEWP V GWAC prices have previously been determined fair and reasonable. Additionally, price competition is expected among authorized resellers for this action. Additional price analysis may be performed in accordance with FAR Overhaul VA Deviation 15.404-1(b).

[REDACTED]
[REDACTED]
Contracting Officer
Technology Acquisition Center

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Date

12. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief. This contract action exceeds the simplified acquisition threshold, but does not exceed \$900,000, therefore, the certification required by FAR Overhaul VA Deviation 16.507-6(d)(1) serves as the Contracting Officer's approval.

[REDACTED]
[REDACTED]
Contracting Officer
Technology Acquisition Center

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Date